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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

SECURITIES AND EXCHANGE COMMISSION OF PAKISTAN

NOTIFICATION

Islamabad, the 29th December, 2015

S. R. O 1290(I)/2015.—In exercise of powers conferred by sub-section (2) of section 154 and sub-section 4 of section 156 read with clause (jj) of sub-section (2) of section 169 of the Securities Act, 2015 (III of 2015), the following draft Securities and Exchange Commission of Pakistan (Opportunity of Hearing) Regulations, 2015 are hereby published by the Securities and Exchange Commission of Pakistan for the information of all persons likely to be affected by these Regulations and notice is hereby given under sub-section (4) of section 169 of the Securities Act, 2015 that objections and suggestions, if any, received within the next fifteen days will be taken into consideration.

1. **Short title and commencement.**—(1) These Regulations shall be called the Securities and Exchange Commission of Pakistan (Opportunity of Hearing) Regulations, 2015.

(2) These regulations shall come into force at once.

4181(1—5)

[2373 (2015)/Ex. Gaz.]

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- (ii) by sending it by courier service or registered post to, the address of the place of residence or business of the person last known to the person serving the notice or document;
- (iii) by sending it by facsimile to the person's facsimile number last notified to the person giving the notice or document; or
- (iv) by sending it by email to the person's email address last known to the person serving the notice or document;

Explanation.—

- (i) Notice or document sent by registered post or courier service shall be taken to be received on the 3rd business day after the notice or document, is sent in a correctly addressed envelope;
- (ii) A notice or document sent by facsimile shall be taken to be received when the sender's facsimile machine indicates a successful transmission to the correct facsimile number; and
- (iii) A notice or document sent by email shall be taken to be received by the addressee when the sender's computer indicates a successful transmission of such notice or document.

4. **Right to Counsel.**—Any party to a hearing under the Act has the right at all times to be advised and accompanied by its legal counsel and financial and fiscal advisors.

5. **Attendance through representative(s).**—The hearing may be attended by the licensed person to whom the notice or show cause notice is sent in person or through an authorized representative.

6. **Adjournments.**—(1) The hearings shall be completed in one go, unless sufficient cause is shown by the parties, jointly or severally, which is beyond the control of the parties.

(2) Notwithstanding the provision of sub-regulation (1) the Commission may in the interest of justice and on personal ground, adjourn the hearing for maximum of two dates and such adjournment shall not be more than fifteen days at any one time or for more than thirty days.

(3) If the person requests in writing and states reasonable grounds for change of place of hearing, such hearing may be held at nearest Company Registration Office subject to availability of necessary facilities.

7. **Notice Period.**—The noticee shall be called upon to submit within a period to be specified in the notice, from the date of service thereof, a written

representation alongwith documentary evidence, if any, in support of the representation to the designated authority.

8. **Right to fair hearing.**—(1) The Commission shall ensure that a fair opportunity is provided to the parties during the hearing to explain their stance and put forth their arguments.

(2) The hearing shall be conducted by an officer or employee of the Commission who has had no prior involvement with respect to the subject matter of the case.

(3) A hearing may be conducted through video conferencing facility or through any other electronic communication system deemed appropriate by the person conducting the hearing on behalf of the Commission.

(4) All pleadings and motions, all recordings or transcripts of oral hearings or arguments, all written direct testimony, all other data, studies, reports, documentation, information, and other written material of any kind submitted during hearing, shall be maintained by the Commission and made available to the parties.

(5) Evidentiary hearings shall be properly recorded and documented.

[No. SMD/BO/POL/01/2015.]

BUSHRA ASLAM,
Secretary to the Commission.